

INVESTMENT ADVISORY AGREEMENT

This Investment Advisory Agreement is made on _____ (date) between **IPK WEALTH SERVICES Private Limited**, which is a SEBI registered Investment Adviser having registered number INA300015906 and having its office D.NO 100 B/26, Room No 111, SCS Tower, First Floor, Sankagiri Main Road, Opposite Tiruchengode Court, Tiruchengode -637304, Namakkal, Tamil Nadu hereinafter called the Investment Adviser

AND

_____ (client name) s/o _____, having its residence at _____, hereinafter called the Client.

Client Details: -

PAN Number

AADHAR Number

DPID

Broker Name

Trading Code

That the expression of the term, Investment Adviser and Client shall mean and include their legal heirs, successors, assigns and representatives, etc.

WHEREAS Investment Adviser is been authorised by SEBI to provide investment advice in terms of SEBI (Investment Advisers) Regulations, 2013.

AND WHEREAS Client wishes to invest in the securities market in accordance with the advice of the Investment Adviser.

NOW, THEREFORE, in consideration of the mutual covenants contained in this agreement, the parties hereby agree as follows:

Appointment of the Investment Adviser:

In accordance with the applicable laws, client hereby appoints, entirely at his / her risk, the Investment Adviser to provide the required services (relating to investing in, purchasing, selling or otherwise dealing in securities or investment products, and advice on investment portfolio containing securities or investment products, whether written, oral or through any other means of communication for the benefit of the client and shall include financial planning) in accordance with the terms and conditions of the agreement as mandated under Regulation 19(1)(d) of the Securities and Exchange Board of India (Investment Advisers) Regulations, 2013 and SEBI (Investment Advisers) (amendment) Regulations, 2020.

Consent: The Client hereby provides consent to the following that he/she had read and understood the terms and conditions of Investment Advisory services provided by the Investment Adviser along with the fee structure and mechanism for charging and payment of fee and based on client's request to the Investment Adviser, an opportunity was provided by the Investment Adviser to ask questions and interact with 'person(s) associated with the investment advice'.

Declaration from Investment Adviser:

The Investment Adviser hereby declares that it

- shall neither render any investment advice nor charge any fee until the client has signed this agreement.
- shall not manage funds and securities on behalf of the client and that it shall only receive such sums of monies from the client as are necessary to discharge the client's liability towards fees owed to the Investment Adviser.
- shall not, in the course of performing its services to the client, hold out any investment advice implying any assured returns or minimum returns or target return or percentage accuracy or service provision till achievement of target returns or any other nomenclature that gives the impression to the client that the investment advice is risk-free and/or not susceptible to market risks and or that it can generate returns with any level of assurance.

Fees specified under Investment Adviser Regulations and relevant circulars issued thereunder:

As per the Regulation 15A of the SEBI Investment Adviser Regulations, an Investment Adviser can charge fees from the clients in Assets under Advice (AUA) mode

- The maximum fees that may be charged under this mode shall not exceed 2.5 percent of AUA per annum per client across all services offered by IA.
- IA shall be required to demonstrate AUA with supporting documents like demat statements, unit statements etc. of the client.
- Any portion of AUA held by the client under any pre-existing distribution arrangement with any entity shall be deducted from AUA for the purpose of charging fee by the IA.

Risk Factors, Risk Profiling and Assessment

- The Investor agrees to follow all procedures as required by the Investment Adviser for conducting risk assessments and profiling the Client as required under Applicable Laws.
- The Investor shall provide the Investment Advisor with all documents and information as required under Applicable Laws.
- The Investment Adviser shall include a detailed statement of risks associated with each type of investment in Securities and investment products

Scope of Services:

Investment Adviser shall provide the services as mentioned below:

- Assist in articulating client objectives and values.

- Investment recommendations on the fee-based model.
- The subject matter of recommendations will be related to the equity market or commodity market.

Functions of the Investment Adviser: Functions, obligations, duties and responsibilities of the Investment Adviser (including principal officer and all persons associated with the investment advice), as envisaged in the Regulations with specific provisions covering, inter alia:

- (a) Terms of compliance with the Securities and Exchange Board of India (Investment Advisers) Regulations, 2013 and its amendments, rules, circulars and notifications.
- (b) Risk assessment procedure of client including their risk capacity and risk aversion.
- (c) Providing reports to clients on potential and current investments.
- (d) Maintenance of records i.e., client-wise KYC, risk assessment, analysis reports of investment advice and suitability, terms and conditions document, related books of accounts and a register containing list of clients along with dated investment advice and its rationale in compliance with the Securities and Exchange Board of India (Investment Advisers) Regulations, 2013.
- (e) Provisions regarding audit as per the Securities and Exchange Board of India (Investment Advisers) Regulations, 2013 and SEBI (Investment Advisers) (amendment) Regulations, 2020.

Investment Adviser will have authority to execute any trade or withdraw or transfer assets from client's account.

Investment Adviser is responsible only for the investment advices for the assets (financial assets) over which client has provided Investment Adviser discretionary authority and not for the diversification or prudent investment of any other assets of Client.

Investment Objectives and Guidelines:

Investment Adviser would provide investment advices in Equity/Commodity segment through direct schemes/direct codes. Client assures that there are no specifications / restrictions on any investments.

Further based on Risk Category and considering Age, Income, Client's Desire to Invest in Equity market, Investment Goal, Disposable income, Surplus fund and other factors of client as informed by client, Investment Adviser has advised and client has also agreed to take **Advisory service** for a **duration of _____ month(s)**

Period of Agreement & Termination

Subject to the terms of this clause 9, this Agreement shall be valid, binding and in force from the date of execution of this Agreement until terminated as per the terms of this Agreement,

- Either of the Parties may at any time terminate this agreement by giving not less than 30 (thirty) days' written notice of termination to the other Party, and the Agreement shall stand terminated on the date specified in such notice as the date of termination.
- Either Party shall have a right to terminate this Agreement after due giving due intimation to the other Party through a written notice, if at any time during the term of this Agreement, the other Party is in violation of any Applicable Laws or becomes insolvent or is subject to liquidation and/or bankruptcy proceedings.
- Either Party may terminate this Agreement with immediate effect, if the other Party has committed a breach of any provisions of the Agreement which is deemed to be incurable.
- The Investor may terminate this Agreement in case of suspension of the certificate of registration of the Investment Adviser by way of written notice.
- The Investment Advisor shall be entitled to terminate this Agreement with immediate effect if the event the Client fails and/or neglects to pay any fees, charges or other amounts payable (if any) under this Agreement;
- This Agreement may be terminated forthwith by the Investment Adviser, at its sole discretion and without being further liable or responsible in any manner whatsoever, on and from the date of know knowledge / receipt of sufficient evidential documents of the occurrence of any of the following events during the term of this Agreement:
 - Misrepresentation by the Client at the time of account opening or otherwise.
 - If the Client is barred and/or restricted and/ or suspended from accessing the securities / financial markets by any regulatory/ administrative/ legislative authority at any time and in any manner whatsoever.
 - Breach of terms of the Agreement by the Client or any fraud committed by the Client in respect of transactions or in transactions in securities in general at any time and in any manner whatsoever.
 - Any proceedings or investigations (regulatory or otherwise) that involve the Client or his/ her/its properties have been initiated or is ongoing.
- This Agreement cannot be performed in its entirety due to any change in the laws in force in India;

Amendments:

This agreement may be amended by mutual written consent of the parties and shall have same impact as of this Agreement.

Representation to the Client:

The investment adviser shall take all consents and permissions from the client prior to undertaking any actions in relation to the securities or investment product advised by the investment adviser.

Client is responsible for the accuracy and completeness of all information provided to Investment Adviser and agrees that Investment Adviser is not responsible for any losses, costs, damages or claims caused by Client's failure to provide such information to Investment Adviser.

Client acknowledges and agrees that Investment Adviser is in no way responsible for the performance of securities that Client purchases on Client's own.

Fees

- The client will be charged with 2.5% of Asset Under servicing (AUS) Every Financial Year
- Investment Advisor will not take any Commission from Broker or From Any other Intermediary. Investment Advisor will not take any share From Profits. Fees will be charged for the total Assets under our service
- All The fees charged will be prepaid in nature. Investor Can opt for Yearly or Half Yearly Fee structure Based on His Convenience.
- Fees Paid are Non-Refundable
- Investor need to initiate the payment within 15 days of the Bill Generation, if not paid within the time investment advisor has the rights to sell the stocks for the particular (fees) amount.
- All fees will be charges with GST or any other Taxation Government may impose time to time.
- Percentage of the Fees may also Differ according to the Regulations imposed by the regulator Time to Time

Representations and covenants:

Investment Adviser undertakes to comply with the Securities and Exchange Board of India (Investment Advisers) Regulations, 2013 and its amendments, rules, circulars and notifications and keep the SEBI registration valid throughout the term of the Agreement and shall also ensure that Investment Adviser, principal officer, persons associated with the investment advice are qualified and certified all times as per the Regulations.

Death or Disability of client:

In event of client's death / disability, services shall be terminated or provided to his/her succession, nomination, representation etc.

Adherence to grievance redressal timelines:

Investment Adviser shall be responsible to resolve the grievances within the timelines specified under SEBI circulars. In case of any query or grievance, client shall contact through following medium:

Tel No.: +91 _____

Mail id: _____

Indemnity:

Client acknowledges that the Investment Adviser's, investment recommendations involve degree of risk. Client acknowledges that all investment activity in Client's Account shall be at

Client's own risk, which can result in loss of Client's investment capital, annual income, and/or tax benefits.

Client acknowledges that the Investment Adviser will not reimburse Client for any losses. Client acknowledges that the Investment Adviser's past performance of recommended investments should not be construed as an indication of future results, which may prove to be better or worse than the past.

Client acknowledges that the Investment Adviser does not claim to be able to accurately predict the short-term or long-term future investment performance of any individual security or of a group of securities.

Client acknowledges that the Investment Adviser makes judgmental evaluations before providing investment advice for Client. In making judgmental evaluations, the Investment Adviser agrees to use its best efforts to review sources of information that it has found to be valuable, accurate and reliable.

Client acknowledges that the Investment Adviser cannot and does not survey all sources of publicly available information.

Client acknowledges that the Investment Adviser is not responsible for the accuracy or completeness of information furnished to the Investment Adviser by Client or by any other party.

Investment Discretion:

- Investment Advisory portfolio services will be discretionary in Nature. All the decision regarding to the investment will be made by advisor
- And Investor Cannot provide suggestion or Recommendations to the Investment Advisor
- All Decision regarding to investment will be taken by Investment Advisor on his sole Discretion

Disclosures:

Client shall read the disclosure as mentioned on website and Investment Adviser shall disclose to the client, if there is any change in the information contained therein.

Disclaimer:

Client shall read and understood the disclaimer as mentioned on website.

IN WITNESS WHEREOF, the parties hereto have executed the Agreement on the date(s) set forth below, and the Agreement is effective on the date of acceptance by the Advisor.

Power of attorney

I (Client Name) have authorised my Investment Advisor **IPK WEALTH SERVICES PRIVATE LIMITED** to execute the trade i.e. is to provide Implementation services to my Demat Services

I (Client name) here by authorise the Investment advisor has the rights to rebalance and restructure the portfolio based on the Market Conditions without my authorization. And I Accept to take all risks in investing.

Investment Advisor Has the authorisation only to Buy / Sell and maintain the stocks., Doesn't have any other authorisation like with withdrawal etc

For INVESTMENT ADVISOR SIGNATURE

CLIENT

Authorised Signatory
IPK WEALTH Services Pvt Ltd

Date

Place